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Personnel

POSITION MANAGEMENT AND CLASSIFICATION (GERMANY)

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This instruction implements AFPD 36-14, Position Management and Classification. It outlines the Headquarters United States Air Forces in Europe (HQ USAFE) position classification and position management policy for Local National (LN) employees in Germany, and prescribes requirements and procedures for classifying positions covered by the Collective Tariff Agreement II (CTA II). It also outlines responsibilities for position management and program maintenance. This instruction applies to all US Forces supervisors whose LN employees are serviced by a US Air Force Civilian Personnel Staff (CPS). It does not apply to Air Force Reserve or Air National Guard units. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Manual (AFMAN) 33-363, *Management of Records*, and disposed of in accordance with the Air Force Records Disposition Schedule (RDS) located in Air Force Records Information Management System (AFRIMS on the AF Portal: **https://www.my.af.mil/gcss-af61a/afrims/afrims/rims.cfm**

SUMMARY OF CHANGES

This change adds classification authority language (para 2.1). Changes sub-paragraphs numbering in Section B, 3. Added A1K approval authority for certain classification actions (para 3.7.1) Deletes part of sub-paragraph A.3.1.8 regarding EMR reporting. Updated HQ USAFE office symbols throughout the Instruction.

Section A—General Provisions

1. Policy. The classification program in USAFE supports the principle of equal pay for substantially equal work. Positions will be classified according to grade level criteria defined in the Collective Tariff Agreement II (CTA II), as supplemented by classification guidelines, implementing instructions, factor rating guides, and standardized position descriptions published by HQ USAFE. Classification will follow effective position management principles in assuring sound grade alignment in and between installations and related functions.

Section B—Authorities and Responsibilities

2. General. Commanders and staff who control, supervise, or participate in the classification process have a legal responsibility to maintain the integrity of the classification program and to apply effective position management principles.

2.1. Legal Authority: Classification for non-US citizen positions in Germany is based on article 56, paragraph 7 of the Supplementary Agreement to the NATO Status of Forces Agreement. Commanders with appointing authority as described in AFPD 36-14 and AFPD 36-1 are the classification authority. The Civilian Personnel Staff providing classification service is solely responsible for the proper classification of positions and exercises this responsibility on behalf of the Commanders with appointing authority.

3. Responsibilities of HQ USAFE Personnel Support Division

3.1. The Civilian Policy Section (A1KKC):

3.2. Develops policies, methods, and procedures for the conduct and maintenance of the position classification program.

3.3. Develops classification guidelines and implementing instructions that interpret evaluation criteria and, or grade determining factors contained in the various appendices to the CTA II.

3.4. Provides technical advice on the implementation of tariff provisions and provides advisory allocations upon request.

3.5. Evaluates civilian personnel office program maintenance.

3.6. Coordinates technical aspects of the position classification program with other components of the US Forces.

3.7. Reviews and makes recommendations on appeal cases, advisory allocations and claims, and complaints regarding position classification disputes.

3.7.1. The Chief, Personnel Support Division (A1K) is the approval authority for appeal cases, advisory allocations and claims, and complaints regarding position classification disputes.

3.8. Coordinates the development of Standard Position Descriptions (SPDs) proposed by the respective HQ USAFE functional activities. HQ USAFE/A1KKC has final classification authority for all SPDs.

4. Responsibilities of Commanders to Whom a Civilian Personnel Staff (CPS) is assigned. Commanders will ensure, through the civilian personnel officer:

4.1. The proper conduct and maintenance of a position classification program according to the provisions of the CTA II, supplementary guidelines, implementing instructions, and SPDs published by HQ USAFE/A1KKC.

4.2. Promotion of a sound classification program through issuance of local publications and use of communication media to achieve understanding and acceptance of the program by employees and their supervisors.

4.3. Coordination of the classification program with appropriate functions within civilian personnel, manpower, and resource management.

4.4. Any trends and developments requiring changes or revisions in established classification guides, procedural requirements, and SPDs are reported in a timely fashion to the Civilian Policy Section, Headquarters United States Air Forces in Europe, (HQ USAFE/A1KKC).

4.5. Legal and, or technical background material needed for the settlement of classification reviews and appeals or cases filed with the labor court are compiled and provided to the appropriate authority.

4.6. Active participation by supervisors and managers in meeting position review requirements and promptly reporting any changes in major duties and responsibilities to the CPS. The CPS will establish procedures to periodically remind supervisors of this responsibility.

4.7. Maintenance of classification accuracy.

4.8. Use of individual, group, or supervisory audits to determine necessary classification adjustments for all positions recommended for change by a supervisor at the time of a survey or through an individual position action request. No position will be upgraded based solely upon time spent in grade by an employee. With the exception of developmental positions (up to and including the target grade), audits are required before assigning higher graded duties or upgrading an occupied position.

4.9. The use of published USAFE SPDs whenever duties in a position match the standardized position description. A match occurs whenever the major duties and responsibilities of a position are substantially identifiable with those in the SPD.

4.10. Preparation of evaluation statements for all individual PDs as necessary and required. Evaluation statements must fully substantiate the classification and document the key considerations in classification determinations.

4.11. Participation of the local works council as required by the Federal Personnel Representation Law and USAFE implementing instructions and/or directives.

5. Responsibilities of Managers and Supervisors. Each manager and supervisor with authority to establish, abolish, or assign duties to positions will:

5.1. Exercise the concepts of sound classification and position management practices, principles, and procedures.

5.2. Establish and maintain, within his or her area of responsibility, an effective position structure consistent with approved mission, manpower authorizations, and administrative authorities. Notify the manpower function and civilian personnel staff, providing all pertinent documentation of proposed organizational and position structure changes.

5.3. Assign duties, responsibilities, and authorities to positions that achieve an optimum balance of economy, effectiveness and productivity, skill utilization, employee motivation, and employee development.

5.4. Consider the impact on all other positions and coordinate with the civilian personnel staff before assigning duties to any position that may result in a grade change.

5.5. Prepare individual PDs for subordinate positions when an adequate SPD does not exist.

5.6. Periodically review the accuracy of each PD for which accountable.

5.7. Execute all administrative requirements for certification or re-certification of individuals assigned to positions designated sensitive.

5.8. Initiate USAFE Form 52 (Germany), Request for Personnel Action--Non-US (Germany), whenever significant position changes are required.

5.9. Provide accurate and sufficient information to position classification specialists regarding the duties, responsibilities, and qualification requirements of those occupations that constitute the core of his or her organization in order to:

5.9.1. Assist the classification specialist in determining the appropriate classification of all new or changed positions.

5.9.2. Advise employees of their assigned duties and responsibilities and of the grade controlling aspects of their positions.

5.10. Advise employees of their right to review classification guidelines and of their grievance and appeal rights regarding position classification.

5.10.1. Treat employees fairly and equally, and provide them full opportunity to freely discuss classification of the position occupied. Based on the provisions of CTA II, Article 64, employees may request a formal classification review of their positions under procedures set forth in Attachment 3 to this instruction. Employees are free to use the system without restraint and must not suffer any disadvantages as a result thereof.

5.10.2. Upon request, give employees access to all tariff criteria, supplementary and implementing classification guidelines or standard position descriptions, and other material used for classifying the position occupied.

5.11. In the event of classification appeals, provide the CPS with complete and accurate information sufficient to ensure timely responses to higher level authorities, classification review committees, and, or German labor courts.

5.12. Support the classification program by ensuring they are familiar with the classification criteria for positions for which they are accountable and requesting advice from classification specialists on interpretation of those criteria in order to explain classification decisions to subordinates.

5.13. Ensure that employees in developmental positions are provided the training necessary to progress to the next higher grade in the career ladder, or document specific performance deficiencies if the employee will not be promoted in a timely manner. Supervisors must also ensure that the employee has demonstrated the potential to perform at the full performance level of the next higher grade in a career ladder before initiating action to promote the employee.

Section C—The Classification System

6. Position Structuring. Position structuring represents the key element in a sound position classification program. Position management policy and procedures are included in Attachment 2.

6.1. When establishing and structuring positions care must be taken to avoid:

6.1.1. Unnecessary and unwarranted duplication of duty assignments.

6.1.2. Unclear job relationships.

6.1.3. Work assignments which produce unnecessarily high grades or grade structures.

6.2. Effective position structuring should consider:

6.2.1. An effective ratio of supervisory to nonsupervisory positions according to DoD and Air Force guidance and objectives.

6.2.2. A balance among senior, journeyman, and lower level positions, depending upon the frequency with which duties of the various levels occur in the normal workload of the organization.

6.2.3. The design of each position to obtain maximum utilization of skills.

6.3. Managers and supervisors are responsible for allocating work among positions to achieve the greatest economy and efficiency, consistent with accomplishment of the organization's mission. A reasonable effort must be made to minimize mixing duties of different grade levels in individual positions. Higher-graded duties should be concentrated in the fewest possible positions.

7. Position Descriptions (PD). The official PD is critical to the proper classification of a position. A PD meets the standard of adequacy when it clearly states the predominant duties and responsibilities essential for effective performance in the position, the supervisory relationships of the position, and includes sufficient information for the proper classification of the position. Other current information about the structure, functions, programs, and procedures of the organization should also be considered in the classification of a position.

7.1. Tariff Position Descriptions (TPDs), SPDs, Core Documents (CDs), or individual PDs are used to clearly define duties and responsibilities of positions.

7.1.1. The immediate supervisor or management official having complete knowledge of the position is responsible for assigning duties to each position under his or her control and for ensuring the accuracy of the description of duties, regardless of the format used. The supervisor or management official will sign and date the PD certifying its accuracy. If a TPD or SPD is used, certification may be indicated on an automated listing indicating

CPCN, title, pay plan, series and grade, or on the Request for Personnel Action (USAFE Form 52).

7.1.2. The position classification specialist assists the supervisor and resolves questions concerning the adequacy of the PD for classification purposes. When the supervisor and classifier cannot reach agreement on these issues, the matter is resolved through the chain of command.

7.2. The PD does not limit management's right to change work assignments. Permanent changes in predominant duties and responsibilities will normally result in a change to the PD. Supervisors must promptly notify the servicing civilian personnel staff of these changes, prepare a revised PD, and submit a USAFE Form 52 to insure that position descriptions are kept current. Prior to implementing significant changes to predominant work assignments, supervisors will, in conjunction with the servicing CPS, comply with Works Council participation rights according to the Federal Personnel Representation Law.

7.3. Use of published SPDs and TPDs is encouraged if the description adequately and accurately describes the predominant duties of the position. The standard of adequacy is not reduced through the use of a TPD or a published SPD. Each position description, whether individually developed or adapted from a standardized description, must be an accurate and adequate description of the position it covers.

7.4. Recording of Titles. Titles will be recorded in both English and German.

7.4.1. English titles. Determine English titles by the titling instructions in the appropriate OPM Classification Standard. In the case of a mixed position or a position without specific titling instructions, apply the guidance in the Introduction to the Position Classification Standards, Section H, Titling Positions. Exceptions are authorized if the title complies with titles used on SPDs or in the English version of CTA II, or is determined to be more appropriate.

7.4.2. German Titles. Titles should correspond to those in the CTA II, USAFE SPDs, and the "Klassifizierung der Berufe"–"Systematisches und alphabetisches Verzeichnis der Berufsbenennungen", a book published by the Federal Statistical Office (Statistisches Bundesamt) containing all position titles applied by the German economy and the public service.

7.5. Statements of differences to PDs are used to facilitate recruitment processes and to allow temporary restructuring of a position in those instances where applicants do not meet education and, or experience requirements of the targeted positions.

8. Position Classification Procedures. The CTA II, as amended, published as USAFE Pamphlet 36-720 and USAFE Pamphlet 36-720G, is the basic guideline for classifying non-US citizen positions in Germany. In those cases where the English language version of the CTA II infers a different meaning than the German language version, the latter is legally binding. Manpower data (MPCN, AFSC, etc.), and similar position documents, are guides that provide the basis for determining the general function of a civilian position. However, they do not authorize, establish, or justify the grade of the position.

8.1. The classification of a position can be reduced to a three-phase analytical process. While each phase is equally important, the basic requirement is to identify the facts in relation to the tariff definitions.

8.1.1. Fact-finding. Obtaining accurate information about a position.

8.1.2. Analyzing. Examining those facts critically.

8.1.3. Evaluating. Determining the title, series, and grade in the tariff definitions, OPM classification standards, or other guides with which the facts compare most closely.

8.2. As a minimum, the position classification specialist must consider the following organizational factors:

8.2.1. The function of the organizational entity in which the position is located.

8.2.2. The purpose of the position.

8.2.3. The relationship of the position to others in the organization.

8.2.4. The skills and knowledge required to perform the duties.

8.2.5. The requirement to apply USAFE SPDs whenever appropriate.

8.2.6. Applicable tariff definitions, OPM classification standards, and position classification philosophy, policies, and procedures.

8.2.7. Any other significant characteristics which could bear on the classification.

8.3. The classifier determines the pay plan, series, grade, English and German titles of the position. An evaluation statement is provided for PDs of a controversial nature and/or for positions of a high visibility as classified in accordance with the CTA II as amended.

8.3.1. Evaluation statements must address all areas, which are relevant in making the classification determination. How a task meets, exceeds, or fails to meet the requirements of a tariff definition must be specified. The evaluation statement must identify the classifier, PD number, the final classification, and include a list of all references used to classify the position. Suggested topics to be covered include:

8.3.1.1. Complexity of work

8.3.1.2. Decision making and judgment

8.3.1.3. Degree of supervision received

8.3.1.4. Training and occupational knowledge required

8.3.1.5. Difficulty of work directed (Supervisory positions only)

8.3.1.6. Precedent Labor Court or Appeal decisions

8.3.1.7. Other factors (Examples in CTA II, SPD references)

8.4. Management disagreement with a classification decision must be resolved through management channels and the civilian personnel staff to the commander having classification authority. In those instances where the classification of a position has been elevated to the commander with classification authority, and the commander's conclusion regarding the classification differs from that of the civilian personnel staff, the case must be submitted to

HQ USAFE/A1KKC for a classification review and analysis of the Position Evaluation Statement. The request for review analysis must include the rationale, comments, or justification provided by both the commander and the civilian personnel staff to support their respective determinations. The decision rendered by HQ USAFE in the specific case is binding on the installation.

9. Classifying Mixed Positions. "Majority of time" (more than 50 percent) is the general principle for determining the grade of mixed-grade positions.

9.1. There are four criteria, all of which must be met before any deviation from the "majority of time" rule is permitted.

9.1.1. The first criterion is that minority duties and responsibilities must be "paramount in influence or weight." These duties must be the basic reason for the existence of the position.

9.1.2. The second criterion is that duties and responsibilities must occupy a "substantial" portion of the employee's time over a reasonable work cycle. Less than 25 percent is not acceptable. Good position management precludes unnecessary dispersion of higher graded duties.

9.1.3. The third criterion requires that duties and responsibilities must be assigned on a reasonably frequent, recurring basis. Accordingly, duties that are of an emergency, incidental, or temporary nature cannot be considered for classification purposes, even if they meet the substantial portion of time criterion.

9.1.4. The fourth criterion provides that duties and responsibilities must be so different from others in the position that they require a considerably higher level of qualifications, which are used as a basis for staffing the position.

9.2. Time percentages for the different duties must be indicated on the PD when describing mixed positions, or any other positions in which it is necessary to point out the key or paramount duties for evaluation purposes. Instances in which time percentages are required:

9.2.1. Positions where duties and responsibilities are of the same grade level in more than one line of work.

9.2.2. Positions where duties and responsibilities are of different grade levels in one or more lines of work.

9.2.3. Supervisory positions where the supervisory duties do not constitute a majority of the incumbent's time and the grade controlling factors are essentially non-supervisory.

9.2.4. In addition to the above, percentages of time may be indicated when they result in increased clarity or understanding of the PD.

10. Classification Advice and Assistance:

10.1. Advisory Decisions. An advisory decision may be requested from HQ USAFE/A1KKC in situations that present problems regarding the interpretation/ implementation of tariff definitions because of non-availability of supplementing instructions, guides, or precedents. Headquarters classification decisions are binding.

10.2. Requests for advisory decisions must include the following documentation:

10.2.1. Proposed PD (original and one copy).

10.2.2. Copy of the current organizational chart or comparable document.

10.2.3. Current functional statement.

10.2.4. Evaluation statement supporting proposed grade and title.

10.2.5. Copy of the current PD, when the new description represents a revision of the previously established position.

10.3. Upon completion of the advisory decision process, the original PD will be returned to the requesting civilian personnel office. A copy of the PD, organizational chart, functional statement, and previous PD will be kept in the precedent file in HQ USAFE/A1KKC.

10.4. Requests for advisory decisions are not appropriate if an employee has already filed a classification appeal.

10.5. Technical Assistance. Technical advice and assistance rendered by HQ USAFE in the solution of classification problems are not limited to advisory decisions. Civilian personnel offices may request advice in any matter related to interpretation and implementation of tariff provisions related to position classification.

Section D—Program Maintenance

11. Applying New Standards. The civilian personnel office will apply newly published or revised standards within 6 months of receipt unless another date is specified in the transmittal letter.

11.1. Effecting Actions on Classification Decisions. The application of a classification determination made by higher headquarters based on the presentation of a particular position or positions through appeal channels, or from a request for advisory decision, is mandatory and binding upon the activity or command concerned.

11.2. Maintaining Classification Accuracy. The maintenance of classification accuracy is a shared responsibility between management and the civilian personnel staff. Classification surveys are optional and may be used at the discretion of the civilian personnel staff. If used, the personnel specialist conducting the survey documents the actions, findings, and recommendations and provides a copy to the organization commander or chief.

11.3. Reporting Individual Position Changes. Supervisors must report any changes that may have classification impact, including the assignment of higher or lower level duties, to the civilian personnel staff prior to implementation. Changes will be implemented only after compliance with all applicable instructions and completion of works council participation procedures.

11.4. Classification Review and Complaints. CTA II, Article 64, establishes the right of an employee to request, through internal channels, a review of the classification of his/her position. The procedures for handling an employee's request for classification review are contained in Attachment 3. In addition, an employee who is dissatisfied with the classification of his/her position may file a complaint with the German labor court.

11.5. Maintaining Records. Accurate documentation of position classification actions/data and proper maintenance of related records and files are essential to the validity of the system. To the extent feasible, and when consistent with reliable record keeping, civilian personnel staffs are encouraged to use available automated systems for maintaining classification records. Position classification and related records will be kept according to Air Force Records Disposition Schedule (available at https://afrims.amc.af.mil.).

11.6. Competitive Levels. The establishment of competitive levels within each competitive area is the means of identifying all positions in the same line of work. In case of a Reduction-in-Force (RIF), competitive positions will be determined based on the same competitive level code and the same or equivalent salary or pay grade. Positions must be sufficiently alike in duties, qualification requirements, and responsibilities, that the incumbent of any position may satisfactorily perform the critical duties of any other position in the competitive level within a reasonable period of time (normally approximately 6 months) of assignment.

11.6.1. Primary responsibility for the assignment of competitive levels rests with the classification specialist in coordination with the staffing and employee relations specialists. Supervisors are consulted if necessary.

11.6.2. The classification of positions under different appendices of the CTA II or different trade categories does not preclude placing them in one competitive level provided that all other conditions are met.

11.6.3. Differing hours of work, tours of duty, or work schedules (part-time/full-time) do not preclude placing positions in the same competitive level.

11.6.4. Security designations of positions alone will not determine competitive levels. If an employee's placement or displacement rights are to a sensitive position, a clearance is required. Defer final placement action until the background investigation is completed.

11.6.5. Supervisory, non-supervisory, managerial, and non-managerial positions in the same or closely related line of work may be assigned to the same competitive level if all other criteria are

11.6.6. Competitive level determinations are not based upon the personal qualifications or performance levels of individual employees.

11.6.7. Determining Competitive Levels:

11.6.7.1. All blue-collar positions not requiring an apprenticeship will be placed in the same competitive level.

11.6.7.2. Clerical and administrative positions that do not require any specialized experience will be assigned the same competitive level.

11.6.7.3. Each individual non-supervisory position at the C-10 special salary grade will be placed in a separate competitive level due to the requirement for specialized technical expertise and the exceptional degree of difficulty and responsibility involved.

11.6.7.4. For all other positions, refer to the current "Klassifizierung der Berufe" for the appropriate competitive level.

11.6.7.5. Determinations will be based on the position's main line of work. Parenthetical titles may require assignment of a separate competitive level.

11.6.7.6. The codes in the "Klassifizierung der Berufe" will be used as the competitive level code in the Defense Civilian Personnel Data System.

CHRISTOPHER C. SHARPE, Colonel, USAF
Director, Manpower, Personnel, and Services

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

Collective Tariff Agreement II (CTA II), 16 Dec 1966, as amended.

USAFEI 36-723, *Implementation of Collective Tariff Agreement (CTA II) and Overtariff Conditions for Local Labor in the Federal Republic of Germany*, 29 July 1999

AFMAN 33-363, *Management of Records*, 1 March 2008

Forms Prescribed:

USAFE Form 52, *Request for Personnel Action – Non-US (Germany)*, 15 April 2008

Abbreviations and Acronyms

AFSC—Air Force Specialty Code

AFRIMS—Air Force Records Information Management System

CPCN—Civilian Position Control Number

CPS—Civilian Personnel Staff (may be assigned to a Flight or Section)

CS&P—Competitive Sourcing & Privatization

CTA II—Collective Tariff Agreement II

DCPDS—Defense Civilian Personnel Data System

EMR—Employee-Management Relations

LN—Local National

MPCN—Manpower Position Control Number

OPM—Office of Personnel Management

PD—Position Description

RDS—Records Disposition Schedule

RIF—Reduction-In-Force

SPD—Standardized Position Description

TPD—Tariff Position Description

Terms

Audit—An interview, conducted by a person competent in the classification process, to determine the current duties and responsibilities assigned to a position and the accuracy of the position description. The interview is normally conducted at the work site where the work methods and processes can be observed.

An "individual/site/desk audit"—-Interview with the incumbent of the position.

A "group audit"—-Interview with two or more incumbents occupying identical positions.

A "supervisory audit"—-Interview with a supervisor or manager to determine the duties and responsibilities assigned to a vacant or occupied subordinate position.

Classification Survey—The planned, systematic review of positions in an organization to assure they are properly described and classified.

Core Personnel Document (CPD)—A document describing the duties, responsibilities, performance standards; and knowledge, skills, and abilities (KSAs) required for the position.

Duties—Assigned work tasks to be performed by an employee. Major or principal duties are those that support the existence of the position, constitute the paramount qualifications, determine the grade, and typically occupy the majority of the incumbent's time. Duties that are neither significant to the classification nor necessary to determine qualification requirements do not have to be described in a position description.

Position Classification—The allocation of a civilian position to a pay plan or pay system, occupational series, salary or wage group, and title.

Position Description—An official record of major duties and responsibilities assigned to a position.

Standardized Position Description (SPD)—A single description used for a number of like positions. It is not intended to limit the duties that may be assigned locally to a position nor does it represent a requirement that all the duties be placed in the local position. If the duties outlined in the SPD are not those required in the position, an individual PD should be prepared locally. The classification specialist and supervisor determine if an SPD is appropriate for the work situation.

Tariff Position Description—A brief description of the typical duties of a position as cited in the grade definitions of appendices in the Collective Tariff Agreement II (CTA II), also include paragraph numbers being referenced.

Position Management—The arranging of duties and responsibilities among positions in such a manner as to achieve maximum economy and efficiency in recruiting, developing, motivating, and retaining competent employees.

Position Review—A review by a supervisor and/or a position classification specialist to determine the accuracy and adequacy of the duties described in a position or to develop information for the preparation of a PD.

Responsibilities—The obligation to successfully complete assigned tasks, meet deadlines, adhere to specifications, and/or administer programs.

Statement of Difference—A statement used for a developmental position which references those duties of the higher-graded (i.e. target) position being performed with a lesser degree of responsibility and independence and greater supervision.

Attachment 2

POSITION MANAGEMENT POLICY AND PROCEDURES

A2.1. USAFE policy is to establish the most effective, efficient and economic structures and to grade all positions in compliance with the appropriate grading criteria. A primary objective of the classification program is to ensure equal pay for equal work, but also to pay only what employees are entitled to by law, international agreement, and directive, in accordance with their assigned duties and responsibilities. These principles are to be applied in a manner that supports the operational capabilities of serviced organizations by not only developing appropriate structures, but also by developing position management plans that ensure a smooth transition to these structures without undue disruption for the organization.

A2.2. Generally, economic and labor market situations provide for a good source of highly qualified applicants to fill jobs at accurately classified grade levels in accordance with good position management principles. Economy of operation sets the tone in the present environment. In addition to the need to follow good management practices in ensuring the best use of government resources, competitive sourcing and privatization (CS&P) studies and reengineering initiatives require that organizations be structured efficiently. Position classification specialists are a vital source of advice to managers in ensuring efficient and effective organizations. A variety of circumstances may have contributed to structures that are not economical or consistent with good position management principles. Some of these are:

A2.2.1. Lack of qualified applicants and management's desire to obtain and keep quality employees.

A2.2.2. Transfer of functions and reorganizations where emphasis was placed on avoiding the downgrading of employees rather than establishing the most economical structure.

A2.2.3. Lack of position management procedures for downgrading positions without adversely impacting operations.

A2.2.4. Lack of guidance on handling downgrade actions that could not be supported in a labor court case.

A2.2.5. Manager and supervisor disagreement when downgrading positions would result in losing or downgrading good performers or valued incumbents.

A2.3. Responsibilities for complying with position management principles.

A2.3.1. Position classification specialists and management officials must work together to achieve the most effective and economical organization structures. Individual position reviews and complete functional position management reviews are valuable tools to achieve this objective. Position management reviews may be initiated by organizational management officials or by the CPS whenever either identifies a situation that warrants a review.

A2.3.2. In conducting position management reviews, managers and the CPS will pay particular attention to non-US positions that are equivalent to US high grades or which are equivalent to the grades of their US supervisors and ensure that only those that are absolutely essential are established. The reviews will also look for job dilution in which a limited amount of higher graded duties and responsibilities have been distributed among several employees.

A2.3.3. The results of a functional review will be documented for the organization. The documentation will specify the approach management and the CPS will take in correcting any deficiencies identified during the review.

A2.4. Procedures for effecting downgrades identified by position management reviews.

A2.4.1. When a review identifies occupied positions to be restructured or downgraded, position classification specialists will consult with employee-management relations and staffing specialists regarding the potential downgrades and how to effect the changes with minimal adverse impact on the employees or the organization. Appropriate personnel specialists in the CPS will review each case based on its merits and will advise management officials on possible courses of action.

A2.4.2. Management officials and CPS specialists will discuss the situation to decide whether to process actions immediately, postpone the downgrades until the positions become vacant, or to adopt another approach for achieving optimum structures as quickly as possible. Factors to be considered are:

A2.4.2.1. Reasons for the downgrade.

A2.4.2.2. Mission impact on the organization if employees vacate positions.

A2.4.2.3. Ability to support any downgrade actions in accordance with German laws and practices.

A2.4.2.4. Length of service and age of affected employees.

A2.4.2.5. Tariff protection rights.

A2.4.2.6. Impact on the morale of personnel in the organization.

A2.4.2.7. Possibility of retaining employee grades by placement in vacant positions.

Attachment 3

CLASSIFICATION REVIEW PROCEDURES FOR NON-US EMPLOYEES IN GERMANY

A3.1. Employees are entitled to a review of the classification of their individual positions in accordance with Article 64, Collective Tariff Agreement II (CTA II), 16 Dec 1966, as amended, and in accordance with the following procedures.

A3.1.1. An official classification review is time consuming for all concerned. Accordingly, supervisors, employees, and personnel specialists should exert maximum effort to maintain an accurate classification system and to resolve classification problems before they escalate into official classification appeals.

A3.1.2. Employees will discuss the content of their position descriptions with their supervisors and inquire about the grade-controlling factors before requesting a formal review of their classification. Supervisors will develop clear position descriptions that stress the predominant duties and grade-controlling factors. Clear and concise position descriptions minimize problems with interpretation and understanding of classification rationale. Also, prior to assigning higher or lower level duties to an employee, supervisors will contact the civilian personnel staff (CPS) to get manpower and works council coordination as required.

A3.1.3. Position descriptions do not describe every duty an employee performs; rather they describe the predominant duties that govern classification. Duties that are not grade-controlling and occupy less than 50% of total working time, may be included under a general statement such as " Performs other duties as assigned."

A3.1.4. The supervisor and employee must agree on the content of the position description. If the supervisor and employee do not agree on the content of the position description, management may request the classification specialist to conduct a site-audit and assist in developing an accurate position description.

A3.1.5. Employees should be informed about the content of Articles 51, 52, and 53, of CTA II and advised that the classification of their position is based on comparing the predominant duties to applicable tariff criteria. Any request for a classification review should refer to these tariff provisions, and be supported by facts. If the classification review request does not satisfy these requirements, the supervisor or the classification specialist will return the request to the employee explaining the reasons for returning the request.

A3.1.6. Supervisors should give employees full opportunity to discuss the classification of the position occupied. They should also consult with classification specialists to discuss classification criteria and inquire about the grade-controlling factors in order to provide answers to employee questions.

A3.1.7. Position classification specialists will consider all information and facts presented by employees and supervisors in making classification determinations. Final decisions will be made by reference to valid tariff criteria and sound position classification principles. Upon request, employees and supervisors will be provided the reasons for the classification determination and all tariff criteria, supplementary and implementing classification guidelines, standard position descriptions, and other material used for classifying the position.

A3.1.8. Employee Management Relations (EMR) Specialists will inform supervisors of Works Council requirements concerning changes in duty assignments.

A3.1.9. Staffing Specialists will coordinate locally established qualification standards and changes thereto with classification specialists. Employees should be placed only in positions for which they fully qualify. Any exceptions must be coordinated with classification specialists to ensure such placements will not negatively impact classification determinations.

A3.2. Review Procedures. If, after discussing the classification of the position with his/her supervisor, an employee still believes that the position is not accurately classified, the employee may request a formal classification review by submitting a written request for classification review through the immediate supervisor to the CPS.

A3.2.1. The request must include the following information:

A3.2.1.1. Employee's full name.

A3.2.1.2. Position title.

A3.2.1.3. Civilian position control number (CPCN)

A3.2.1.4. Trade category and wage group for blue collar employees

A3.2.1.5. Salary group for white collar employees

A3.2.1.6. The requested grade

A3.2.1.7. Clear and specific reasons why the present position classification is considered incorrect, and

A3.2.1.8. Pertinent tariff criteria supporting the requested grade

A3.2.2. If an individual position description exists, the employee must confirm, in writing, that the content of the position description is accurate, but that he/she is appealing the classification. If a USAFE Standard Position Description (SPD), or a Tariff Position Description (TPD) was used, the employee cannot appeal the tariff or USAFE classification, but may request a site-audit to determine the propriety of applying the particular SPD or TPD to the employee's position.

A3.2.3. The supervisor will review the request to make sure that it complies with the above requirements. If the employee's request does not meet the minimum requirements for further processing, the supervisor will return the request to the employee, advising him/her of the appropriate course of action. The supervisor may request the assistance of the position classification specialist in this respect.

A3.2.4. If the request meets minimum requirements mentioned above, the supervisor will promptly endorse the request and add remarks, recommendations, or statements of facts as deemed appropriate. The supervisor will indicate on the request that the position description has been discussed with the employee and that the supervisor and employee agree on the content. If the parties do not agree on the content, the supervisor may request a site-audit to determine the accuracy and adequacy of the position description, or propriety of applying a TPD or SPD. The supervisor will then forward the request to the CPS without delay.

A3.2.5. The responsible classification specialist in the CPS will:

A3.2.5.1. Discuss the specific reasons and basis of the employee's dissatisfaction with the employee and supervisor/s concerned.

A3.2.5.2. Gather information from all pertinent and appropriate sources. These may include but are not limited to, appellant, supervisor/s, operating official/s, other employees, organization charts, functional statements, regulations and guidelines applicable to subject position, manpower officials...etc.

A3.2.5.3. Assure there is agreement amongst the supervisor, the employee, and the classifier with regard to the employee's actual duties and responsibilities.

A3.2.5.4. Review the contested classification action by giving full consideration to the reasons identified by the employee for his/her dissatisfaction.

A3.2.5.5. Render a decision within six weeks. This timeframe may be extended in the event of extraordinary circumstances. The employee will be notified of any extension and given a projected date for completion. If the employee is sustained, promptly take appropriate action to correct the classification. If the employee is not sustained, provide written notification to the employee citing the reasons for the decision and information on possible further action as provided under the following paragraphs.

A3.3. HQ USAFE's Final Review. . If not satisfied with the decision by the CPS, the employee may request a final review by HQ USAFE. In this case, the employee may forward the request through the supervisor and the CPS to HQ USAFE/A1KKC. The CPS will attach a complete record of the base-level review and transmit the request without delay. HQ USAFE/A1KKC will review the case giving full consideration to the evaluation developed by the responsible classifier and reasons for the dissatisfaction of the employee. HQ USAFE/A1K will issue a decision within six weeks. This time frame may be extended in the event of extraordinary circumstances. The employee will be notified of any extension and given a projected date of completion. The HQ USAFE/A1K decision will be final and binding on the installation concerned. Where the requesting employee is sustained, appropriate corrective action will be taken promptly. The effective date of any corrective personnel action resulting from a classification review will be determined in compliance with the provisions of CTA II, Article 49, paragraph 3, and instructions contained in applicable USAFE Instructions. If the employee is not satisfied, the decision will be substantiated in a written notification to the employee.

A3.4. Classification Review Process. All parties involved in the classification review process must give this matter priority to provide the employee with a reply as soon as possible. The employee will be informed of the status of his/her complaint on a timely basis.

A3.5. Labor Court Action. If the employee at any time prior to or during the appeal submits a litigation case with the Labor Courts, an internal appeal will not be accepted, or in the case of an ongoing appeal, the appeals process will immediately be terminated. Final decisions rendered by HQ USAFE under this attachment do not deprive affected employees of the right to substantially pursue their claim in a German Labor Court.